

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201508521	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/07/2015 4:36 PM	Location of Incident: Essex Street and Broome Street	Precinct: 07	18 Mo. SOL 4/7/2017	EO SOL 4/7/2017	
Date/Time CV Reported Wed, 10/07/2015 8:52 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 10/07/2015 8:52 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Adam Quiles	13313	946657	007 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Adam Quiles	Discourtesy: PO Adam Quiles acted rudely toward § 87(2)(b)				

Case Summary

On October 7, 2015, § 87(2)(b) filed this complaint with the CCRB via phone.

On October 7, 2015, at approximately 4:36 p.m., at Essex Street and Broome Street in Manhattan, § 87(2)(b) was pulled over by PO Adam Quiles of the 7th Precinct for making an improper turn. PO Quiles issued § 87(2)(b) two summonses, for § 87(2)(b) and allegedly threw the summonses and § 87(2)(b)'s identification information through the window at her, causing the summonses to hit her on cheek (**Allegation A**).

There was no video footage for this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

As noted above, § 87(2)(b) originally accepted mediation, but prior to completing the mediation, requested that the case be returned for investigation. On February 19, 2016, a notice of claim request was sent and will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- PO Quiles has been a member of the NYPD for seven years and has had one previous allegation against him. § 87(2)(g)

- § 87(2)(b) has filed two previous CCRB complaints, § 87(2)(b)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A -Discourtesy: PO Adam Quiles acted rudely toward § 87(2)(b)

§ 87(2)(b) stated that after being pulled over, PO Quiles asked for her license and registration. § 87(2)(b) asked twice why she had been stopped, handed PO Quiles her registration, and began looking through her purse for her license. § 87(2)(b) was having trouble finding her license in her bag, at which point PO Quiles told her, “No, I don’t have time for you to look in the mess of your bag” and requested she give him anything with her name on it. § 87(2)(b) gave PO Quiles her Lucille Roberts gym membership card. PO Quiles then returned to his vehicle and several minutes later came back with § 87(2)(b)'s registration, gym card, and two summonses. PO

Quiles threw these items through § 87(2)(b)'s window. § 87(2)(b) believed the registration landed in her lap, the gym card landed towards the door of the car, and the two summonses hit her on her left check. PO Quiles told her, "Just check guilty on the back of the ticket and move on your way."

PO Quiles stated that upon approaching § 87(2)(b)'s vehicle, she used profanity throughout the interaction, repeatedly asking him "Why the fuck are you pulling me over?" PO Quiles informed § 87(2)(b) that once she provided her information, he would tell her why she was being pulled over. After approximately five to ten minutes of searching in her purse, § 87(2)(b) was unable to provide any of her information, so PO Quiles told her he needed some kind of identification with her name on it. § 87(2)(b) provided him with a gym membership card, which had her photo, name, and date of birth on it. PO Quiles could not recall if the membership card also provided her address or if he asked § 87(2)(b) to verbally provide her address. PO Quiles returned to his vehicle and ran § 87(2)(b)'s information and the car license plate, and wrote her two summonses. Upon returning to the vehicle, PO Quiles tried to hand § 87(2)(b) the summonses, but she refused to take them. PO Quiles placed the summonses on § 87(2)(b)'s dashboard, directly above the steering wheel. He denied ever throwing them or the summonses ever hitting § 87(2)(b) anywhere on her face or body. PO Quiles stated that he informs all motorists that information regarding the summonses is on the back and to check off guilty or not guilty.

§ 87(2)(g)

Squad: 14

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date